

Polaris Parenting Project



Polaris Mediation Preparation System

Part I — Foundation

1. Understanding Mediation

Why This Matters

For many parents, mediation is one of the first times they are asked to actively shape the outcome of their case. You may receive a notice, a scheduling order, or a recommendation from an attorney, and suddenly find yourself preparing for a meeting that could significantly affect your child's future, often without a clear sense of what that meeting will involve.

The whole thing can feel overwhelming, and the uncertainty often arrives as a set of questions: What actually happens during mediation? Will I have to sit across from the other parent? Does the mediator decide anything? Do I have to agree to something? What happens if mediation does not work?

Understanding the process before you enter the room reduces that uncertainty and lets you focus on what matters most. This section explains what mediation is, how it commonly works, and what role you play in it.

What Mediation Is

Mediation is a structured conversation designed to help parents discuss unresolved issues and explore whether agreements can be reached. The purpose is narrower than a trial: to find out whether you and the other parent can agree on the matters that remain open.

That distinction matters more than almost anything else you bring into the room. Mediation is a discussion, not a contest, and parents who arrive ready to argue their case often leave frustrated when they find there is no one to win it in front of. What helps instead is clarity about what matters to you and where you have room to work with the other parent.

Depending on the circumstances, the discussion may involve parenting schedules, decision-making, financial issues, or other unresolved matters. Mediation does not always settle everything. Even partial agreement can narrow what remains, leaving fewer issues to work out through continued negotiation, further mediation, or the court.

Mediation is an opportunity to explore agreement, not an obligation to reach one. Ending without an agreement, sometimes called reaching an impasse, is a possible outcome, not a failure.

What Mediation Is Not

Mediation is not a trial. No one presents evidence to a judge, and no one decides who was right or wrong. The purpose is practical rather than adversarial: to determine whether agreements can be reached about future arrangements. Parents tend to find mediation more productive if they can shift from proving a point toward solving a problem. Discussions tend to go further when they focus on how past events relate to present circumstances and future arrangements rather than on assigning blame for the events themselves.

Common Formats

Many parents picture mediation as sitting directly across a table from the other parent for several uncomfortable hours. That sometimes happens, but it is far from the only format.

In **same-room mediation**, both parents, their attorneys if represented, and the mediator are together for the discussion. This format can move quickly when communication between parents is workable.

In **separate-room mediation**, sometimes called caucus or shuttle mediation, each parent stays in a different room and the mediator moves between them, carrying proposals and concerns back and forth. You may never be in the same room as the other parent at all. Many parents are surprised this option exists, and for those who dread direct contact, it can make the entire process feel manageable.

In **virtual mediation**, the session is conducted by video. Depending on the platform and the mediator, parents may meet together or remain in separate virtual rooms, much like the separate-room format in person.

If it is not clear which format applies to you, confirm it in advance. Knowing what the room will look like before you walk in lets you focus on the discussion rather than the setting.

The Role of the Mediator

The mediator manages the process. Their role is to facilitate discussion, help clarify misunderstandings, and keep conversations productive. They may identify areas of agreement and help explore possible solutions, but they do not represent either parent, take sides, or decide anything for you.

The Role of Attorneys

If you are represented, your attorney may help you understand the legal issues involved, evaluate proposals, and assess potential risks. They may also review proposed agreements and help protect your legal interests. Attorneys and mediators serve different functions: the mediator facilitates the discussion, while the attorney provides advice and advocacy.

Self-Represented Parents

Many parents participate in mediation without an attorney. If you are representing yourself, preparation becomes especially important, because responsibilities that would otherwise belong to an attorney fall to you. You may need to evaluate proposals, identify concerns, and decide whether an agreement makes sense for your situation. This system does not provide legal advice, but it can help you think through the issues and prepare for the discussion.

The Role of the Parents

You and the other parent are the decision-makers. No agreement takes effect unless both parents agree to it. That gives you real influence over the outcome, and it places real weight on being prepared to use it well.

2. Current Reality

Why This Matters

Most parents enter mediation focused on what they want to change. That is understandable. By the time mediation happens, the disagreements have often existed for months or years, and you may already have strong opinions about what should happen next and why.

Before discussing changes, though, it helps to get clear on the situation that exists today.

This sounds simple, but it is easy to skip. Parents often arrive ready to debate whether an arrangement is fair or reasonable without first agreeing on what is actually happening. In many cases, they are discussing different versions of the same reality.

The goal of this section is not to decide who is right, and not to decide whether the current arrangement should continue. It is simply to describe the present situation as clearly as you can, before anyone argues about changing it.

Before You Begin

The most useful thing you can bring into mediation is an accurate picture of what is actually happening right now.

For the moment, try to objectively paint the picture of your situation. Try not to make assumptions about it. Whether the current arrangement is wrong because it has caused frustration, or right because it has existed for a long time, is not the question at this stage. The goal is simply to observe and describe.

As you reflect, you may find yourself slipping into explanation, often signaled by the word "because." If that happens, you have likely shifted from describing what is happening to explaining why. The purpose here is simply to observe how things currently stand, not yet the reasons behind them.

There will be time later to decide what it all means. For now, try to focus on the picture itself.

Separating the Pattern From Its Origin

In general, arrangements develop over time, and understanding that evolution can provide useful context.

An arrangement's origin can matter, even when two arrangements look identical on paper. Picture two families with the exact same week-on, week-off schedule. In one, both parents sat down and agreed to it. In the other, the schedule developed over time and one parent never felt it accurately reflected what had been intended. Same calendar, very different stories.

The fact that an arrangement exists does not mean it should continue, and the fact that one parent objects does not mean it should change. Understanding how things came to be simply helps distinguish a disputed arrangement from a settled one, or the reverse.

Current Reality — Reflection

Describing What Exists

What schedule is actually being followed, and on which days? _____

Who handles the daily routines, like drop-offs, pickups, and appointments?

How are decisions being made right now, and by whom? _____

What does communication between you and the other parent look like?

What conflicts keep coming up? _____

How It Developed

Describe how the current arrangement came to exist. Was it the result of an agreement, a court order, a practical necessity, a gradual evolution over time, or something else?

3. From Positions to Problems

Why This Matters

The last section focused on describing the situation as clearly as possible. This one focuses on the conclusions you have drawn from it, and on what happens when those conclusions meet those of the other parent.

The goal here is not to abandon those conclusions or trade them for different ones. It is to understand them well enough to know where they came from and what they rest on.

Mediation has a way of bringing your conclusions into contact with other ways of seeing the same situation. Ideas that feel obvious to you may not feel obvious to the other parent. A conclusion that has lived comfortably in your own thinking can sound different the moment it is spoken aloud.

The aim is not a stronger position. It is fewer moments where you surprise yourself.

When You Are Asked Why

At some point in mediation, a simple question tends to arrive: why?

A mediator asks it not to challenge you, but because understanding your reasoning is how they help. You may be asked why an arrangement is better, why a change matters, or why something that happened means what you think it means. The question is neutral. It is part of understanding.

Even so, it can catch you off guard, because many positions begin as wants, and wants are surprisingly hard to explain. "I want more weekday time" is an honest sentiment, but it leaves the conversation nowhere to go except agreement or disagreement. Underneath the want there is usually a reason, and the reason is what a discussion can actually use. "The current schedule moves the children midweek, and the disruption is landing on school nights" points at something specific. It gives both parents something to work on rather than something to win.

So it is worth taking the positions that matter most to you, in private, and trying to say plainly why you hold them. Not to defend them, just to hear them. Sometimes the reasons come easily and the position feels even sounder than before. Other times you find that part of what felt like certainty was really familiarity, that a conclusion has been with you so long it stopped needing reasons. Both are useful to know before you are asked.

When the Other Parent Sees It Differently

There is a moment in most mediations when the other parent describes the same situation you just described, and almost nothing about their version matches yours.

This can be hard to sit with. It can feel like being contradicted about your own life. The instinct is to correct them, to explain why they are wrong, to point out what they left out. However, if you follow that instinct too far, the mediation may become the same argument the two of you have already had many times.

Preparing for this moment is not about rehearsing a rebuttal. It is about understanding the disagreement well enough that you are not meeting it for the first time in the room. Try, honestly, to state the other parent's view the way they would state it. Not the version that is easiest to dismiss, but the one they would recognize as their own. You are not agreeing they are right. You are making sure you understand what you actually disagree about.

It helps to know that many disagreements arrive carrying at least two things at once: a frustration about the past and a concern about the future. "He was late to every exchange last year" is a frustration. It explains why the issue matters to you, and it is often completely fair. But underneath it is usually a concern that can actually be solved: the exchanges need a set time and a plan for when someone is running behind. The frustration tells you why it matters. Mediation can acknowledge the frustration, but it tends to be more useful when the discussion turns to the concern underneath it.

There is one more reason these disagreements can be harder to untangle than they first appear. Almost every parent walks into mediation believing they are acting in their child's best interest, and the other parent usually believes exactly the same. Most of the time, both are sincere. The difficulty is that a child's interest is surprisingly easy to blend with your own without noticing, until "what is best for the child" has quietly become "what is best for the child, as I understand it." This is not something careless parents do. It may be one of the most common habits of loving parents. Noticing the possibility does not ask you to change your position. It only helps you see it clearly, before someone else sees it differently.

Looking Ahead

Current Reality asked you to describe the situation before judging it. This section asked you to look at the conclusions you have drawn and to begin turning them into something a conversation can use.

The next section asks a different question. Given everything you believe, what matters most?

From Positions to Problems — Reflection

A Position That Matters to Me

Describe one outcome you would like to see come from mediation. _____

The Reason Beneath It

Why does that outcome matter to you? What concern, problem, or circumstance is it meant to address? _____

What Is the Actual Problem?

Try to describe the issue without referring to what the other parent did wrong. What problem are you trying to solve? _____

How Might the Other Parent Describe This?

Without agreeing or disagreeing, describe how you think the other parent would explain the same issue. _____

The Child's Interest

Describe the child's need or interest involved in this issue. Try to describe it in a way that stands on its own, without making either parent the center of the answer. _____

What Would Improvement Look Like?

If this issue were resolved well, what would be different for the child? _____

4. Priorities & Flexibility

Why This Matters

In mediation, almost everything can start to feel equally important. The schedule, the holidays, the pickup time, the wording of a single clause, all of it arrives at once, and all of it can feel like something you cannot afford to get wrong. That feeling is exhausting, and it works against you. A parent who treats every point as essential has no energy left for the points that actually are.

This section is about sorting that out ahead of time, while you are calm, so that you walk in knowing the difference between what matters most to you and what you can hold more loosely. That difference is hard to find in the mediation room, with the other parent across from you and the pressure on. It is much easier to find beforehand.

This is not about lowering your standards or becoming more agreeable. It is about understanding your priorities clearly enough that you can hold the important things firmly and let the smaller things be smaller.

What Matters Most Is Usually Short

When parents first list what they care about, the list is long. Almost everything makes it on. That is normal, and it is the wrong place to stop, because a list where everything matters is the same as a list where nothing does. It gives you no way to choose when you have to.

The useful work is narrowing. Of everything on that long list, which few things are the ones you would protect even if it meant moving on others? Most parents eventually find the truly essential list is shorter than they expected. The rest matters, but it matters less, and knowing that in advance is what lets you spend your attention where it counts.

It also helps to separate two things that often look alike: what you are attached to, and what you are actually trying to protect. A parent may feel strongly about one particular schedule while what they care about underneath is a consistent routine. Another may be set on a specific holiday arrangement while what matters most is real time with extended family. The preference and the priority can overlap, but they are not always the same, and seeing the priority underneath the preference is often where new options appear.

One more thing worth checking as you narrow: is each item essential because of what it does for your child, or because of how it would feel to lose it? Both are real, but they behave differently under pressure. The first tends to remain important. The second can sometimes loosen once you see it clearly.

Flexibility Is Not the Same as Giving In

Flexibility has a bad reputation in a setting like this. It can sound like weakness, like being the parent who folds. It is worth separating the two, because they are not the same thing at all.

Giving in is conceding something that matters because the pressure got to be too much. Flexibility is knowing, ahead of time, which things you do not actually need to hold, so that you

can let them go easily and without regret. The first happens to you. The second is something you decide. A parent who has done this work is not weaker in the room. They are harder to wear down, because they are not spending themselves defending things they were always willing to move on.

There is a second kind of flexibility, too, and it is the more useful one. Often, more than one arrangement can satisfy the same underlying priority. A parent who values consistency may find several schedules capable of providing it. A parent who values staying involved in a child's education may find more than one way to stay informed. The priority does not change; only the path to it does. When you know what you are actually trying to protect, it becomes easier to recognize a solution that protects it in a form you had not pictured.

This is also what makes agreement possible at all. Mediation tends to move when each parent can offer something that costs them little and matters to the other. Knowing your own flexible areas in advance means you can recognize those moments when they come, rather than meeting every proposal as a threat.

Telling a Real Conflict From an Unfamiliar One

At some point a proposal may land that sounds reasonable at first and uncomfortable a moment later. Sometimes that discomfort is a genuine conflict with something important to you. Other times it is just the discomfort of an unfamiliar approach to a problem you had only ever pictured solving one way.

The difference is not always obvious in the moment, which is exactly why it helps to have thought about your priorities beforehand. It lets you tell "this does not protect what matters to me" apart from "this is not how I imagined it." Both reactions are real. They are simply not the same, and only one of them is a potential reason to hold the line.

Looking Ahead

The Foundation is now in place. You have described the current situation, examined the reasoning behind what you want, and sorted what matters most from what you can hold more loosely.

What follows is the practical work: laying out the specific issues to be discussed, and carrying everything you have prepared into the mediation itself.

Priorities & Flexibility — Reflection

An Issue That Matters to Me

Choose one issue that may be discussed during mediation. _____

What Am I Actually Trying to Protect?

Look past the specific arrangement for a moment. What priority sits underneath it?

What matters most about this issue? _____

What Would Still Work?

Are there other arrangements that could protect that same priority? If so, what are they?

What Feels Essential?

What part of this issue feels most important to preserve? _____

For My Child, or For Me?

Take what you just named. Is it essential because of what it does for your child, or because of how it would feel to lose it? There is no wrong answer. The point is only to know which. _____

Where Is There Room to Move?

What part of this issue could you hold more loosely without sacrificing what matters most?

Part II — Mapping the Conversation

Why This Part Exists

So far, the looking you have done has been about your own situation: what is happening, why you want what you want, and what matters most. This part turns the same attention toward the conversation itself.

Most parents prepare for mediation by thinking about what they want to say. Fewer stop to consider what is likely to happen once the conversation begins, and so they can be caught off guard by the shape of the discussion even when the issues themselves are familiar. The point here is not to predict your mediation. No one can. It is to look closely enough at the conversation you are walking into that less of it arrives as a surprise.

5. What May Be Discussed

Mediation has a way of not staying where it starts. A disagreement that looks like it is about the schedule can turn out to be about transportation. Something that sounds like a communication problem can turn out to be about who makes decisions. Sometimes one issue stays one issue. Sometimes it opens into several, and sometimes several collapse into one thing underneath them all.

This is normal, and it is worth knowing before you sit down, because a parent who expects the conversation to move is far less rattled when it does. Part of what mediation does is discover what the disagreement is actually about. An issue you walk in certain of can look different once the other parent's perspective is sitting next to yours, not because you were wrong, but because you were only ever holding one part of the picture.

So the useful work now is to look ahead at what you think will come up, while holding it loosely enough that you can follow the conversation if it goes somewhere you did not expect.

What May Be Discussed — Reflection

A sketch, not a full account. A few words on each line is enough.

What issues do you expect to come up?

List the ones you can see coming. Do not worry about wording or completeness.

Which of these matter most to you?

Mark the ones that carry the most weight. These anchor your brief later.

Do any of these connect to each other?

Sometimes two issues are really one issue seen from two angles. _____

Pick one issue. Is the disagreement underneath it the same as the disagreement on its surface?

You may find they match. You may find they do not. _____

6. Open Questions

Why This Matters

As you think about the issues you have identified, you may notice that some parts of the conversation are still uncertain. That is normal.

Some information is simply unavailable. You may not know the details of a proposal or facts that have not yet been shared. Other uncertainties are harder to recognize because they do not feel like uncertainties at all.

Some assumptions are easy to catch. Others settle into your thinking so gradually that they stop feeling like assumptions and begin feeling like facts.

You might walk into mediation certain the other parent wants to change the schedule because they do not care about stability. Twenty minutes later they explain a work schedule you did not know about. The assumption was not malicious, and it was not foolish. It simply filled a gap where information had not yet arrived.

Much of the friction in mediation comes from responding to what we believe the other person means rather than to what they have actually said.

You do not need to resolve every uncertainty before mediation begins. It is often enough to recognize the difference between what you know, what you assume, and what remains unanswered. They often feel similar from the inside. Separating them is its own kind of preparation, because an assumption you have recognized as an assumption is much easier to set aside when new information arrives.

Looking Ahead

You now have a clearer sense of the conversation you are walking into: the issues you expect, the ones that matter most, and the difference between what you know and what you have been assuming.

What follows shifts from preparing your thinking to preparing for the day itself. The focus becomes the mediation as an event: what to bring, how to organize what you have done, and how to arrive ready to use it.

Open Questions — Reflection

A sketch, not a full account. A few words on each line is enough.

What do you actually know?

The things you are confident are true, that you could stand behind if asked. _____

What are you assuming?

Look at what you expect the other parent wants or intends. Which of these do you know, and which have you filled in? _____

What do you not know yet?

The open questions, the things that would need answering before some issues could be settled.

What would be useful to find out before mediation?

Of those unknowns, which could you answer ahead of time, and which are worth raising early in the session? _____

Part III - The Countdown

72 Hours Out — Prepare

This is where you remove the things most likely to distract you on the day of mediation. Anything that depends on time, coordination, or another person belongs here. Start it early, because the things on this list often depend on someone other than you.

Speak With Your Attorney

If you have an attorney, connect with them now. Confirm what the session is expected to cover, what documents you should bring, and that the two of you are aligned on your overall approach. If your work in What May Be Discussed or Open Questions surfaced uncertainties, this is the time to raise them.

If you are representing yourself, review the work you have already completed and make sure your questions, priorities, and expected topics are organized and easy to find during the session.

Review Your Work

Return to the work you completed in Foundation and Mapping the Conversation. Have those pages available.

Review the issues you expect to discuss, the priorities you identified, where you have flexibility and where you do not, and the questions that remain unanswered. The goal is not to rethink your positions. It is to be familiar enough with them that you can explain them calmly and consistently.

You are not starting over. You are bringing forward work you have already done.

Gather Your Documents

Pull together the materials you may need and organize them before the day of mediation. Depending on your situation, these may include existing court orders or agreements, your proposed parenting plan, school and activity schedules, financial information, or records of parenting time.

As you organize them, ask yourself:

- What does this document actually show?
- Does it answer a question, or simply support one part of the discussion?
- Are there gaps where additional information may still be needed?

Knowing what your materials do, and do not, show is often as important as having them. Do not wait until mediation begins to discover that something important is difficult to locate.

Review the Legal Framework

Understanding how your state approaches parenting time, decision-making, financial support, or other relevant issues provides useful context for the discussion. If you are unsure whether a particular issue is even open to negotiation, discuss it with your attorney before mediation whenever possible.

Confirm the Logistics

Confirm the date, time, location or video platform, childcare, transportation, and anything else needed for the day. If the session is virtual, make sure you can access the platform before mediation begins.

Plan for the session to take longer than expected.

48 Hours Out — Review

Two days out, the work shifts from gathering to confirming. The goal now is to remove any remaining uncertainty, so that nothing you could have settled in advance is still open when you sit down.

Confirm With Your Attorney

If you have an attorney, confirm you are aligned on what the session will cover and on your priorities going in. Raise anything still unresolved now, while there is time to think it through together rather than in the moment. Make sure you know how to reach them during the session if a question comes up.

Review Your Work

Read back through your work one more time. If any part of what you plan to discuss is difficult to explain clearly, take time to simplify it now.

You are not looking for new conclusions. You are making sure the ones you reached still feel sound, and that you can put them into words without strain.

Review Financial Questions

If financial issues may be discussed, make sure you have a general understanding of the information likely to come up. If you have an attorney, confirm that you understand any financial topics you expect to discuss. If you are representing yourself, identify any questions you would like clarified before mediation.

Review the Day Ahead

Take a few minutes to think through how you want to approach the session. Mediation may include pauses, disagreements, or unexpected turns. None of those require an immediate response.

Remember that you can pause, ask questions, or request a break if you need one. If you have an attorney, make sure you have already discussed how the two of you will communicate during the session.

Reconfirm the Logistics

Confirm the session details, childcare arrangements, transportation, technology if the session is virtual, and that your attorney's contact information is easy to reach. The fewer logistical questions you carry into the next day, the more attention you can give to the conversation itself.

24 Hours Out — Ready

By now the work is done. The day before mediation is for settling: making sure everything is organized, accessible, and closed, so that nothing is left open when you walk in.

You are not preparing anymore. You are making sure your preparation is within reach.

Final Document Check

Make sure every document you may need is organized and accessible, and that you know where each one is before you need it. If the session is virtual, confirm that anything you might share or refer to is ready to open without searching.

The goal is simple: nothing important should be hard to find tomorrow.

Technology

If the session is by video, confirm the platform and that you have the link. Test your connection, make sure your device is charged, and confirm that you can access or share documents if needed.

Resolve anything that is not working today, not in the first few minutes of the session.

Final Logistics

Confirm the time, location or access details, childcare, transportation, and anything else you need for the day.

The fewer logistical questions you carry into tomorrow, the more attention you can give to the conversation itself.

Give Yourself Permission to Stop

There comes a point when more preparation stops being helpful. If you have done the work in this workbook, trust it.

Spend the rest of the evening doing something that helps you arrive rested and clear-headed.

You are not trying to predict every turn the conversation might take. You are giving yourself the best opportunity to respond thoughtfully when it does.

As You Walk In

You cannot control how the other parent approaches mediation.

You cannot control every proposal that is made or every direction the conversation takes.

You can control whether you arrive prepared, clear on what matters to you, and ready to participate thoughtfully.

You have already done that work.

Now walk in.